

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

December 13, 2010

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Dr. Rinne, Mr. Pierson, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Collins moved to approve Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on November 22, 2010. Motion (per Consent Agenda) carried.

[CA] Minutes from Vouchers Meeting of the Governing Body on December 6, 2010. Motion (per Consent Agenda) carried.

Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Brown. Upon inquiry, Barb Dorr, City Treasurer, and Rick Parish, Parks and Recreation Director, provided information available pertaining to a voucher payable to Motion Fitness (\$19,285.00) for exercise bikes for program activities through the Parks and Recreation Dept. purchased with a rec mill grant through the school district. Upon further inquiry, Ms. Dorr and Mayor Kaysen clarified a voucher payable to the Cheyenne Area Convention and Visitors Bureau (CACVB) (\$379.67) was for reimbursement due to a billing inadvertently sent to CACVB for telephone service for the City's new Operations Building at the Depot Plaza. Motion carried. Voting "yes" – all members of the governing body.

Mayor Kaysen opened a public hearing to receive comments and input for a transfer of ownership and transfer of location for a retail liquor license application filed with the City Clerk's Office for W.E. Dinneen, Inc. d/b/a [to be determined], 400 W. Lincolnway, Cheyenne, WY. (License currently held by Cheyenne 28, LLC f/d/b/a C.B. & Potts, 1650 Dell Range Boulevard, Cheyenne, Wyoming.) Comment was made with regard to literature provided by the applicant and proposed concept plans for redevelopment of the downtown Dinneen building. There being no further comments and the purpose of the hearing having been met, the item was referred to Finance Committee.

"An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City Map of the Cheyenne City Code, by changing the Zoning Classification from LR-2 Low Density Residential-Developing District to MUB Mixed Use with

Business Emphasis District for a portion of the NW¼NE¼NW¼ of Section 26, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (located south of and adjacent to Dell Range Boulevard, east of Van Buren Avenue).” Reporting for Public Services Committee, Mr. Collins moved to approve on third and final reading, seconded by Ms. Ash. Motion carried. Voting “yes” – all members of the governing body. (#3910)

“An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City Map of the Cheyenne City Code, by changing the Zoning Classification from LR-2 Low Density Residential-Developing and CB Community Business Districts to LR-2, MR-2 Low and Medium Density Residential-Developing and P Public Districts for the The Pointe, Fifth Filing, A Replat of Lots 13-25, Block 13; Lots 27-69, Block 14; Lots 1-35, Block 16; Lots 1-22, Block 17; Lots 1-27, Block 18; Lots 1-32, Block 19; Lots 1-19, Block 20 and Lot 1, Block 21, The Pointe; and Lots 37-38 and 71, Block 14; The Pointe, Second Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of E. Four Mile and Powderhouse Roads).” Upon inquiry by Kevin Lewis regarding a comprehensive drainage report for this item, Mayor Kaysen advised his inquiry related more directly to the next agenda item involving a final plat for the area. Mr. Collins moved to approve on third and final reading, seconded by Mr. Pierson. Motion carried. Voting “yes” – all members of the governing body. (#3911)

"A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for The Pointe, Fifth Filing, a replat of Lots 13-25, Block 13; Lots 27-69, Block 14; Lots 1-35, Block 16; Lots 1-22, Block 17; Lots 1-27, Block 18; Lots 1-32, Block 19; Lots 1-19, Block 20 and Lot 1, Block 21, The Pointe; and Lots 37-38 and 71, Block 14, The Pointe, Second Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of E. Four Mile and Powderhouse Roads).” Kevin Lewis commented on the drainage report, stating his belief that it was incomplete and that the final plat should not be approved until a final drainage plan has been submitted and available to property owners in the area to review and provide input. He further expressed his concerns with existing vegetation conditions involving weeds. Mr. Collins moved to adopt with staff recommendations #1, 2, 5, 6 and 8, seconded by Mr. Pierson. Upon inquiry, Brad Emmons, AVI, agent for applicant, advised the drainage report will reflect areas that would handle drainage and explained they are working with the City Engineer and the school district on exact locations where drainage easements will be located and, when finalized, this information will be included on the school district’s site design. Upon further inquiry, Mr. Emmons clarified the construction drawings will reflect re-seeding of areas after grading and explained prior to signatures being obtained on the final plat, the drainage plan and easements will be approved by the City Engineer. Upon inquiry, Dave Royer, project manager, explained as the property is developed and graded (stripped), re-seeding will be done to assist with weeds/vegetation concerns. He further explained water trucks will be utilized during construction to help alleviate the dust, noting high winds at times are a problem affecting efforts to minimize the effects of blowing dirt, dust and materials. Discussion included the following topics: Final drainage report and opportunity for neighborhood review and feedback; maintenance responsibilities of drainage areas; flooding of areas during past development phases in the area, consistency in standards for developers, and drainage concerns generally. Doug Vetter, City Engineer, advised his office has been working with the developer and the school district on drainage issues; that drainage easements will be included on the plat; that an appropriate amount of drainage retention for the area is to be provided, and that the plat will not be signed until a final drainage plan has been

submitted and approved. Mr. Vetter further advised they are not aware of inadequate drainage run-off for the area and that current run-off levels do not exceed peak discharge amounts. Upon further inquiry regarding when the developer might have the final drainage plan completed, Mr. Royer stated they are working with the school district on the plans and an exact time frame for submitting the final plan is unknown at this time. Comments continued on drainage concerns and approving the final plat prior to complete drainage information being submitted. Ms. Ash moved to postpone to Dec. 22, 2010, seconded by Dr. Rinne. Comments followed in support and non-support of postponement; opportunity for the public and those affected by the development to review and provide input on drainage design plans; and the City Engineer not authorizing signatures be acquired on the plat until the City Engineer receives, reviews and approves the drainage plan. Motion to postpone failed. Voting "yes" – Ms. Ash and Ms. Case. Voting "no" – Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker, Mr. Valdez and Mayor Kaysen. Main motion carried. Voting "yes" – all members of the governing body with the exception of Ms. Ash, Ms. Case and Dr. Rinne voting "no". (#5251)

"A Resolution supporting the City of Cheyenne's application for a Land and Water Conservation Fund Grant for the Martin Luther King Jr. Park Tennis Court Project (2007-2010 1% Sales Tax and City In-Kind Contribution)." Mayor Kaysen announced this item was being withdrawn at the request of the sponsor in order to allow interested parties to meet and discuss current conditions and amenities at the park, including future overall developments or projects, and specifically relative to the existing tennis court and proposal of 2 new tennis courts. Mayor Kaysen noted as the item was being withdrawn there would be no discussion or action entertained on the item. Upon inquiry, he confirmed that comments could be made under other business later in the meeting if desired. Under other City business, Liz Byrd commented she was disappointed the resolution was removed from the agenda, and discussed generally repairs that are needed to the current tennis court due to deterioration. She noted her concerns with water run-off and flooding in the park; accessibility of the entire park to residents, including the ballfield in the northern corner of the park, and future amenities and improvements, and requested organization of a committee to coordinate plans for park improvements with City staff. Mayor Kaysen clarified the resolution was withdrawn from the agenda to provide for establishing a work group involving several interested parties and individuals to discuss projects for the park with Parks and Recreation staff. Mayor Kaysen further explained that information presented at the Finance Committee meeting regarding the grant request (i.e. resolution) being sought reflected that there was not enough grant funding available to repair the existing tennis court and the grant request was for landscaping the current tennis court area, and that future development of 2 new tennis courts in a different area of the park, when funding is available, was discussed. Ms. Byrd requested a commitment be provided for when new tennis courts will be built and that communication between interested persons and City staff be provided, and suggested the City request project funding through the State parks office.

[CA] "A Resolution declaring as surplus three (3) City-owned properties located at 515 Morrie Avenue, 916 East 5th Street and 922 East 5th Street, Cheyenne, Laramie County, Wyoming, together with all improvements thereon, and authorizing the City Clerk and City Purchasing Director to proceed with proposed sale of said properties pursuant to Wyo. Stat. § 15-1-112" -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] “A Resolution designating local banks as depositories for municipal funds” -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] Contract between the City of Cheyenne and the United States Department of Homeland Security for a Grant in the amount of \$100,000 for the City of Cheyenne Fire and Rescue Hazardous Materials Response Team and Regional Emergency Response Team # 7. Motion (per Consent Agenda) carried. (#5621)

[CA] Use Agreement between the City of Cheyenne and Cheyenne Regional Medical Center to permit limited use of the public right-of-way for the construction of a utility corridor and setting a fee. Motion (per Consent Agenda) carried. (#5622)

[CA] Human Services Agreement between the City of Cheyenne and Connection Corner (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried. (#5623)

Professional Services Contract between the City of Cheyenne on behalf of the Cheyenne Metropolitan Planning Organization and AVI Professional Corporation for Fox Farm Corridor Plan (Federal Highway Administration Planning Funds). Reporting for Finance Committee, Mr. Brown moved to approve, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute, seconded by Mr. Valdez. It was advised the substitute refines the scope of work to match available funding. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. (#5624)

[CA] Grant Award Agreement between the Wyoming Office of Homeland Security and the Cheyenne Police Department for Law Enforcement and Terrorism Prevention Activities -- referred to Finance Committee.

[CA] Services Contract between the City of Cheyenne, Cheyenne Police Department, and Policy Solutions Limited to implement the Department of Justice, Office of Juvenile Justice and Delinquency Prevention Enforcing Underage Drinking Laws Discretionary Military Grant Program award -- referred to Finance Committee.

[CA] Contract Modification #6 to Contract #5280 between the City of Cheyenne and Reiman Corporation for reduction of retainage for the Norris Viaduct Project (2003-2006 1% Sales Tax; 1% Specific Purpose Sales and Use Tax; SLIB; TEAL; BOPU Funds). Motion (per Consent Agenda) carried. (#5280)

Consideration of Bid #R-13-11 for furnishing one new Fire Apparatus and Loose Equipment for the City of Cheyenne Fire & Rescue Department. Mr. Brown moved to reject all submitted bids, seconded by Mr. Valdez. Comments followed on re-writing the bid specs as bids received were higher than anticipated. Upon inquiry, James Martin, Fire Chief, provided information relative to the bid specifications, which was for a pump-under-cab apparatus, and indicated that in addition to the apparatus, equipment must also be provided and since all bids received were over the estimated amount, he would like to re-bid for a more standard fire engine, not a pump-under-cab, at a lower cost to have funding (5th penny sales tax) for the affiliated equipment. Motion carried. Voting “yes” – all members of the governing body.

[CA] Consideration of RFP-02-11 for a Contract between the City of Cheyenne and Edwards General Contractors, Inc. for ADA Compliance Upgrades at the Taco John’s Event Center -- referred to Finance Committee.

[CA] Request to expand the dimensions of the current dispensing room for O'Jackson's, Inc. d/b/a Jackson's Sports Grill, 1121 Old Town Lane, Cheyenne, WY -- referred to Finance Committee.

Announcement was made of the Appointment of John Patrick Hand, Gene Palen and Lily Clabots to the Cheyenne Historic Preservation Board, and Lindsay Ann Woznick, Gene MacDonald and Dave Teubner to the City Planning Commission, to be confirmed December 22, 2010.

Announcement was made of the Reappointment of Gerry McGowen to the Cheyenne Housing Authority Board; Tony Adams and Ann Redmond Esquibel to the Personnel Commission; Lisa Burgess to the Fire Department Civil Service Commission; Jason Paiz to the Police Department Civil Service Commission; Marc Woods to the City Planning Commission, and Darin Westby and Rick Johnston to the Building Code Board of Appeals, to be confirmed December 22, 2010.

Announcement was made that due to the holiday season, the regularly scheduled Mon., Dec. 27, 2010 meeting of the Governing Body will instead be held on Wed., Dec. 22, 2010 beginning at 5:30 p.m. in City Council Chambers. There will be no Vouchers meeting of the Governing Body at Noon on Mon., Dec. 20, 2010 as those payables will be included on the Vouchers listing for the Dec. 22nd meeting. Finance Committee will meet as regularly scheduled on Mon., Dec. 20, 2010 at 11:00 a.m., Room 122, Municipal Building. There will be no Public Services Committee meeting on Tues., Dec. 21, 2010 at Noon as there are no items for the agenda requiring a meeting.

Under other City business:

Hailey Ellingham, spoke in opposition to the pending removal of designated trees in Lions Park due to height concerns affiliated with the air flight path for the airport. She discussed positive attributes of the park involving preservation of habitat areas for birds and other wildlife; trees serving as a sound barrier and a wind break around the lake; wetlands environment; effect of the trees on the environmental integrity of the park, and community quality of life involving park aesthetics. She requested the opportunity to review documentation relative to whether the trees posed an air flight safety concern, and requested the decision to remove the trees be reconsidered. Jackie Oceanak also spoke in opposition to removal of the trees, remarking on tree benefits to the community, and requested the removal of the trees be delayed to allow for review of further information involving slope measurements relative to Federal Aviation Administration (FAA) regulations and City ordinance. Ms. Oceanak read a letter into the record (on file with City Clerk's office) that she had submitted on behalf of her citizen's group to the City Council on Dec. 10, 2010 regarding the group's concerns and issues surrounding removal of the trees. Other topics presented by Ms. Oceanak included: Unresolved issues about the trees; actual tree heights; wording contained in City Ordinance No. 1969; height restrictions and slope measurements relative to the flight path; whether grand stand structures at Frontier Park violate height restriction, and the City vs. FAA's authority and responsibility regarding removal of the trees. Ms. Oceanak submitted copies (on file with City Clerk's office) of a survey map of the

Lions Park area in question, noting the map was provided by the Airport Board, and reviewed information contained on the map. Mayor Kaysen requested Ms. Oceanak submit the group's questions in writing to the Mayor's Office along with copies of referenced materials noted by Ms. Oceanak during her comments. It was questioned whether a performance bond had been required as part of the contract with the contractor hired to remove the trees. Upon inquiry, Mayor Kaysen advised the tree company hired to provide removal services is licensed to do work in the City, that no performance bond was required and that the contract work is identified to start in January. Dan White, City Attorney, stated all City licensed tree service providers are required to carry commercial general liability insurance as a condition of a business license, and the amount of liability coverage required under the contract had been increased from that required for a license. Comments of concern were expressed regarding Council members listening to the public, and compliance with Ordinance #1969.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 7:30 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
December 22, 2010